

25STCP03068 25STCP03068

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Case Number: 25STCP03068 Hearing Date: August 14, 2026 Dept: 514

Blue Hill Specialty Insurance Company v. Rodrigo

25STCP03068

Respondent's Motion to Compel Arbitration

Tentative Ruling

The motion is granted in part.

Background

On August 12, 2025, Blue Hill Specialty Insurance Company ("Blue Hill") filed a petition for issuance of superior court file number – uninsured motorist claim, naming as respondents Shammika Rodrigo ("Rodrigo"), Varand Harouian ("Harouian"), and Irina Grigorian ("Grigorian").

On June 8, 2026, Rodrigo filed this motion to compel arbitration. On June 16, 2026, Harouian and Grigorian filed a joinder to the motion to compel arbitration.

Blue Hill filed an opposition on June 17, and Rodrigo filed a reply on June 22.

The hearing was initially scheduled for July 1 and was continued.

Legal Standard

Insurance Code section 11580.2, subdivision (f) covers underinsured or uninsured motorist coverage and states in pertinent part:

"The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration. The arbitration shall be conducted by a single neutral arbitrator. ... If the insured has or may have rights to benefits, other than nonoccupational disability benefits, under any workers' compensation law, the arbitrator shall not proceed with the arbitration until the insured's physical condition is stationary and

ratable. In those cases in which the insured claims a permanent disability, the claims shall, unless good cause be shown, be adjudicated by award or settled by compromise and release before the arbitration may proceed. Any demand or petition for arbitration shall contain a declaration, under penalty of perjury, stating whether (i) the insured has a workers' compensation claim; (ii) the claim has proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim; and (iii) if not, what reasons amounting to good cause are grounds for the arbitration to proceed immediately."

(Ins. Code, § 11580.2, subd. (f).)

The provisions of Insurance Code section 11580.2 are deemed to be a part of every uninsured motorist policy in California. (See *Quintano v. Mercury Casualty Co.* (1995) 11 Cal.4th 1049, 1053; *Harford Fire Insurance Co. v. Macri* (1992) 4 Cal.4th 318, 324.) The arbitration mandated by section 11580.2, subdivision (f) is a form of contractual arbitration governed by the California Arbitration Act (the "CAA"). (*Pilimai v. Farmers Insurance Exch. Co.* (2006) 39 Cal.4th 133, 141.)

Code of Civil Procedure 1281.2, which is part of the CAA, authorizes a party to petition a court for an order enforcing an arbitration agreement:

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner; or

(b) Grounds exist for the revocation of the agreement.

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact"

(d) ... If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding.

(Code Civ. Proc., § 1281.2.)

Code of Civil Procedure section 1281.6 sets forth the procedure for the selection of an arbitrator:

"If the arbitration agreement provides a method of appointing an arbitrator, that method shall be followed. If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her successor has not been appointed, the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator.

When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees.”

Discussion

Respondent Rodrigo seeks a court order compelling the parties to arbitrate their dispute. Respondents Harouian and Grigorian join in the request.

Rodrigo argues that arbitration is required under the terms of the insurance policy at issue, pursuant to Insurance Code section 11580.2. Blue Hill does not deny that arbitration is required. (See Opp. at pp. 12-13.) In fact, Blue Hill has agreed to arbitrate; moreover, the parties have selected R.A. Carrington to serve as the arbitrator. (Opp. at p. 13; see also Kaye Decl., Exh. E.)

The evidence in the record shows, however, that Blue Hill – although nominally agreeing to arbitrate – has unreasonably delayed the initiation of the arbitration. In May 2025, Rodrigo served a demand for arbitration. In August 2025, just over a year ago, Blue Hill filed the petition in his action. By no later than April 2026, the parties had selected the arbitrator. And yet, Blue Hill has refused to schedule the arbitration.

Under the facts here, this constitutes a “refusal” to arbitrate within the meaning of Code of Civil Procedure section 1281.2. As both sides agree that the dispute is arbitrable, and both sides agree that R.A. Carrington should serve as the arbitrator, the motion to compel arbitration is granted.

Rodrigo also requests that the Court order that the arbitration hearing be scheduled before the end of 2026. That request is denied. The arbitrator (with input from the parties) will schedule the arbitration hearing. But even if (as Blue Hill contends) certain discovery must be taken before the arbitration hearing, that is no excuse for failing to initiate the arbitration, engage the arbitrator selected by the parties, and schedule the arbitration with him. Any disputes regarding discovery and the appropriate timing of the arbitration hearing can be discussed with, and resolved by, the arbitrator.

The motion is granted in part.

Conclusion

The Court GRANTS IN PART the motion of Respondent Shammika Rodrigo (joined by Respondents Varand Harouian and Irina Grigorian) to compel arbitration.

The Court ORDERS the parties to initiate the arbitration with the arbitrator selected by the parties (R.A. Carrington) and engage the arbitrator forthwith.

The Court DENIES the request for a court order regarding the scheduling of the arbitration hearing. The scheduling of the hearing is for the arbitrator to determine.

The Court SETS a post-arbitration status conference for April 15, 2026, at 8:30 am, in Department 514. The Court ORDERS the parties to file a status report by no later than April 8, 2026.

The Moving Party is ORDERED to give notice.